

25STLC08924 25STLC08924

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 25STLC08924 Hearing Date: June 23, 2026 Dept: 836

APPLICATION FOR WRIT OF POSSESSION

Date: 06/23/26 (1:30 PM)

Case: Evergreen Bank Group v. Felix Robles (25STLC08924)

TENTATIVE

RULING:

The UNOPPOSED Application for Writ of Possession by

plaintiff Evergreen Bank Group as to defendant Felix Robles is GRANTED. The

Court finds that plaintiff has established the probable validity of its claim

to possession of the subject property, namely, a 2024 CAN-AM ORB Maverick RX RS

(VIN 3JB8 XAT2 3RE0 0234 8).

Plaintiff Evergreen Bank Group, doing business as Freedom

Road Financial, is the assignee of a promissory note, disclosure and security

agreement that defendant had entered into for the financed purchase of the

subject property, and plaintiff has perfected a lien on such property. (Urso

Decl. ¶¶ 1, 5-6; Ex. 1 at 1 & Ex. 2.) Under the agreement, upon a default

of any provision, plaintiff has the right to take the subject property from

defendant. (Urso Decl. ¶ 8 & Ex. 1 at ¶ 12.) Defendant has been in

default since January 23, 2025. (Urso Decl. ¶ 7 & Ex. 3.) Plaintiff has

made demand for a return of the subject property, but defendant has not

complied. (Urso Decl. ¶ 9.)

Under CCP § 512.060, a writ of possession cannot issue

unless the Court finds “[t]he plaintiff has established the probable validity

of the plaintiff’s claim to possession of the property.” “A claim has ‘probable validity’ where it is

more likely than not that the plaintiff will obtain a judgment against the

defendant on that claim.” (CCP § 511.090.)

Based on the evidence presented, the Court finds that it is

more likely than not that plaintiff would obtain a judgment in its favor for

possession of the subject property. Plaintiff provides sufficient documentary

evidence that it has a security interest in the vehicle at issue and that

defendant is in default of the agreement. (Urso Decl. ¶¶ 6-9 & Exs. 2-3.)

Plaintiff has demanded possession of the vehicle, but defendant has improperly

retained it. (Urso Decl. ¶ 9.)

The Court also finds probable cause to believe that the

vehicle may be found at defendant’s residence: 14218 Belgate Street, Baldwin

Park, CA 91706. (Urso Decl. ¶ 14.)

The Court finds that a turnover order under CCP § 512.070 is

warranted here. The Court finds that an undertaking is required because the

amount owed (\$23,333.93) is less than the market value of the vehicle (\$24,025).

(CCP § 515.010; Urso Decl. ¶¶ 7, 11 & Exs. 3-4.) While the attached

declaration claims that the outstanding balance is \$26,585.83 (Urso Decl. ¶ 12),

this is not corroborated by the attached loan history. (See Ex. 3.)

Therefore, per CCP § 515.010, an undertaking of \$1,382.14 is warranted.

For the foregoing reasons, the

Application for Writ of Possession as to defendant Felix Robles is GRANTED,

subject to the plaintiff's posting of an undertaking in the amount of \$1,382.14. The

Court will sign the Proposed Order electronically received 2/20/26 with changes

consistent with the ruling herein.